

**CHAPTER cxxviii.**

An Act to alter the wards and to increase the number of aldermen and councillors of the borough of Wallasey to authorise the Corporation to provide and work omnibuses to consolidate the rates of the borough and to confer further powers upon the Corporation with reference to the health local government and improvement of the borough and for other purposes.

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[9th August 1920.]

WHEREAS the borough of Wallasey (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas the borough is for the purpose of the election of councillors now divided into ten wards each of which is represented by three councillors and the council now consists of ten aldermen and thirty councillors:

And whereas it is expedient for the better government of the borough and for the purpose of securing greater equality of representation that the borough should be divided into fourteen wards each represented by three councillors and that the number of aldermen and councillors respectively be increased to fourteen and forty-two:

And whereas by an order dated the twenty-fifth day of June nineteen hundred and twelve relating to the Birkenhead Poor Law Union and made under section 60 (Supplemental provisions as to guardians) of the Local Government Act 1894 it is provided that the parish of Wallasey should be divided,

A.D. 1920. into ten wards and that one guardian should be elected for each such ward with the exception of Wallasey Ward and that for Wallasey Ward two guardians should be elected:

And whereas it is expedient that the number of guardians representing the parish of Wallasey upon the board of guardians of the Birkenhead Poor Law Union be increased from eleven to fourteen:

And whereas by the Wallasey Tramways and Improvements Act 1899 the Wallasey Tramways and Improvements Act 1906 and the Wallasey Tramways and Improvements Act 1909 the Corporation are empowered to construct maintain and work the tramways therein referred to and it is expedient to confer further powers upon them in regard to their tramway undertaking and to authorise them to provide and work omnibuses:

And whereas it is expedient to make further provision in regard to the streets and buildings in the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough be enlarged as is provided by this Act:

And whereas all the expenses of the Corporation whether as a municipal or sanitary authority or otherwise are payable out of the borough fund and borough rate or out of the district fund and general district rate of the borough subject so far as the said rate is made for the purposes of the Public Health Acts and certain other purposes to provisions for differential rating in certain cases:

And whereas the parish of Wallasey is coterminous with the borough and it is expedient that the contribution of such parish to the borough fund should be levied as part and be paid out of the poor rate for the said parish and that in relation thereto the provisions contained in this Act for differential rating in certain cases in lieu of the existing provisions for differential rating as hereinbefore recited be enacted:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for and in connection with the provision and equipment

of omnibuses and such estimates amount to a sum of forty thousand pounds and it is expedient that the cost thereof should be spread over a term of years : A.D. 1920: —

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Minister of Health has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Wallasey Corporation Short title. Act 1920.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Increase of Council.

Part III.—Omnibuses and Tramways.

Part IV.—Streets Buildings Sewers and Drains.

Part V.—Infectious Disease and other Sanitary Provisions.

Part VI.—Foreshore.

Part VII.—Rating.

Part VIII.—Finance.

Part IX.—Miscellaneous.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

“The borough” means the county borough of Wallasey;

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"The Corporation" means the mayor aldermen and burgesses of the borough;

"The council" means the council of the borough;

"The mayor" "the town clerk" "the treasurer" "the medical officer" "the surveyor" and "the inspector of nuisances" mean respectively the mayor the town clerk the treasurer the medical officer of health the surveyor and the inspector of nuisances of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

"Omnibus" means any stage carriage other than a tram-car moved by animal power or by mechanical power including in that expression steam electrical and every other motive power not being animal power;

"The Corporation tramways" means the tramways for the time being belonging to or authorised to be constructed by the Corporation;

"The borough fund" "the borough rate" "the district fund" and "the general district rate" mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

"The parish" means the parish of Wallasey;

"The overseers" means the overseers of the poor of the parish;

"The poor rate" means the poor rate for the parish;

"Daily penalty" means a penalty for each day on which any offence is continued by a person after conviction;

The expressions "statutory borrowing power" and "statutory security" have the meanings assigned to them respectively by section 4 (Interpretation) of the Act of 1901;

"Revenues of the Corporation" includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation;

“The Act of 1896” “the Act of 1899” “the Act of 1901” A.D. 1920.

“the Act of 1906” and “the Act of 1909” mean respectively the Wallasey Urban District Council (Promenade) Act 1896 the Wallasey Tramways and Improvements Act 1899 the Wallasey Improvement Act 1901 the Wallasey Tramways and Improvements Act 1906 and the Wallasey Tramways and Improvements Act 1909.

PART II.

INCREASE OF COUNCIL.

4. The expression “the commencement of this Part of this Act” means the twenty-second day of October nineteen hundred and twenty. Commencement of Part II. of Act.

5. On and after the first day of November nineteen hundred and twenty the council shall consist of fourteen aldermen and forty-two councillors. Increase of aldermen and councillors.

6.—(1) From and after the first day of November nineteen hundred and twenty the division of the borough into wards as existing immediately prior thereto shall cease to exist and the borough shall be divided into fourteen wards which shall be named respectively New Brighton Ward Upper Brighton Ward North Liscard Ward South Liscard Ward North Egremont Ward South Egremont Ward North Seacombe Ward South Seacombe Ward Somerville Ward Poulton Ward Marlowe Ward St. Hilary Ward Warren Ward and Wallasey Ward. Division of borough into wards.

(2) Each of the said wards shall comprise the portion of the borough indicated by a separate colour and distinguished by the name of the ward on the map (in this Act called “the ward map”) signed in triplicate by Ernest Gardner the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office.

(3) Three councillors shall be assigned to each of the said wards.

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Deposit of
ward maps.

7. A copy of the ward map shall within one month after the passing of this Act be deposited with the Minister of Agriculture and Fisheries the Minister of Health the Registrar-General and the Commissioners of Inland Revenue.

Copies of
ward map to
be evidence.

8. Copies of the ward map deposited with the town clerk or any extract therefrom certified by him to be true shall be received by all courts of justice and elsewhere as *prima facie* evidence of the contents of such map and such map shall at all reasonable times be open to the inspection of the persons liable to any rate leviable within the borough and all persons so liable shall be entitled to a copy of or extract from such map certified by the town clerk on payment of a reasonable fee for every such copy or extract.

Appoint-
ment of and
retirement of
councillors.

9.—(1) At a meeting held within six weeks before the commencement of this Part of this Act the Council as then constituted shall by resolution assign the councillors of the borough remaining in office after the first day of November nineteen hundred and twenty to the several wards into which the borough is by this Act divided or to some of them and every councillor so assigned shall hold his office in the ward to which he shall be assigned for the same period as he would have held such office if the existing wards of the borough had remained unaltered. Provided that there shall not be assigned to any ward more than one councillor whose term of office expires on the first day of November nineteen hundred and twenty-one nor more than one councillor whose term of office expires on the first day of November nineteen hundred and twenty-two.

(2) At the elections to be held in any ward on the first day of November nineteen hundred and twenty so many councillors shall be elected as shall be necessary to complete the number of three for each ward and the mayor or such person as he shall appoint shall be the returning officer at the elections for the new wards.

(3) The order of retirement of the councillors elected for any ward in pursuance of this section shall be as follows:—

(a) Where one councillor is elected he shall go out of office on the first day of November nineteen hundred and twenty-three:

(b) Where two councillors are elected the councillor elected by the larger number of votes shall go out of office on

the first day of November nineteen hundred and twenty-three and the other councillor shall go out of office on the first day of November nineteen hundred and twenty-two or the first day of November nineteen hundred and twenty-one as the case may require having regard to the time of retirement of the assigned councillor for such ward : A.D. 1920.

- (c) Where three councillors are elected the councillor elected by the largest number of votes shall go out of office on the first day of November nineteen hundred and twenty-three and the councillor elected by the next largest number of votes shall go out of office on the first day of November nineteen hundred and twenty-two and the councillor elected by the smallest number of votes shall go out of office on the first day of November nineteen hundred and twenty-one.

(4) If no poll shall be taken at the election of councillors for any ward on the first day of November nineteen hundred and twenty or if there shall be an equality of votes at any such election the council shall at their meeting held on the ninth day of November nineteen hundred and twenty determine the order of retirement of the councillors affected and if any doubt arises as to which councillor or councillors should go out of office at the various dates the doubt shall be determined by the council.

10. In regard to the election and rotation of aldermen the following provisions shall apply :— Election of aldermen.

- (1) On the ninth day of November nineteen hundred and twenty the council shall elect seven aldermen to hold office for six years and two aldermen to hold office for three years :
- (2) On the ninth day of November nineteen hundred and twenty-three the two aldermen so elected for three years together with the five aldermen who would in the ordinary course retire on that day shall go out of office and their places shall be filled by election :
- (3) On the ninth day of November nineteen hundred and twenty-six the seven aldermen so elected for six

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years shall go out of office and their places shall be filled by election :

- (4) If any doubt arises as to which alderman or aldermen should go out of office at the above-mentioned dates the doubt shall be determined by the council.

As to elections and rotation generally.

11. Subject to the provisions of this Act all elections vacations of office and rotations shall be governed and regulated by the Municipal Corporations Acts.

Preparation of autumn register for year 1920.

12. For the purpose of the preparation of the autumn register for the year nineteen hundred and twenty to be made in pursuance of the Representation of the People Act 1918 the borough shall be deemed to be divided into fourteen wards in accordance with the foregoing provisions of this Act as from such date as may be necessary.

Application of Municipal Corporations Acts.

13. Subject to the provisions of this Act the provisions of the Municipal Corporations Acts with respect to the division of the borough into wards or the alterations of wards shall apply to the borough and nothing in this Act shall take away or affect the power to alter the number or boundaries of the wards of the borough under the provisions of the said Acts.

Increase of guardians for parish.

14. Subject to the provisions of section 60 (Supplemental provisions as to guardians) of the Local Government Act 1924 (and as regards any alteration of the wards constituted by this Act to the provisions of that Act as to the alteration of wards for the election of guardians of the poor) the following provisions shall have effect :—

- (1) The number of guardians for the parish shall be increased from eleven to fourteen and there shall be a corresponding increase in the total number of guardians for the Birkenhead Union :
- (2) The parish shall for the purposes of the election of guardians be divided into fourteen wards which shall be respectively coterminous in area with and shall bear the same names as the wards into which the borough is divided under the provisions of this Act :
- (3) One guardian shall be assigned to each of the said wards of the parish :

(4) At a meeting held within six weeks before the commencement of this Part of this Act the board of guardians of the poor of the Birkenhead Union as then constituted shall by resolution assign the then existing guardians representing the parish respectively to such of the new wards into which the borough is divided by this Act as they may determine and every guardian so assigned shall hold his office in the ward to which he shall be assigned for the same period as he would have held such office in the existing ward of the said parish if the same had remained unaltered: A.D. 1920.

(5) As soon as may be practicable after the commencement of this Part of this Act the guardians shall be elected to represent each of the wards to which guardians are not assigned by the said board of guardians in pursuance of the preceding subsection of this section and the guardians so elected shall represent the wards for which they are respectively elected upon the said board of guardians until the fifteenth day of April nineteen hundred and twenty-two.

15. If any difficulty or question arises with regard to the carrying out of the provisions of this Part of this Act the same shall be determined by the Minister of Health on the application of the Corporation and the said Minister may make such order as appears to him to be necessary or expedient for the purpose of removing such difficulty or determining such question. Minister of Health to determine questions.

PART III.

OMNIBUSES AND TRAMWAYS.

16.—(1) The Corporation may provide and maintain (but shall not manufacture) and may run omnibuses within the borough: Power to run omnibuses.

Provided that the Corporation shall not run omnibuses on any road forming part of the estate for the time being of the Mersey Docks and Harbour Board except with the consent in writing of the board which consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be referred to and determined by the Minister of Transport.

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(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in their omnibuses.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The Corporation shall perform in respect of the omnibuses provided under this section all the services in regard to the conveyance of mails which are prescribed by the conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

(6) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 and of section 32 (Council not bound to carry animals and goods) of the Act of 1899 shall apply to and in relation to the omnibuses of the Corporation as if such omnibuses were carriages used on tramways.

Fares and
charges.

17. Subject to the provisions of this Act the Corporation may demand take and recover for passengers and parcels conveyed upon the omnibuses of the Corporation fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport.

Passengers'
luggage.

18. Every passenger travelling upon the omnibuses of the Corporation may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

19. The Corporation may if they think fit convey on the omnibuses small parcels not exceeding fifty-six pounds in weight at charges not exceeding the charges sanctioned under the provisions of this Act and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals.

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Parcels and
dogs.

20. The omnibus undertaking authorised by this Act shall be deemed to form part of the tramway undertaking of the Corporation Provided that in the accounts of the Corporation relative to their tramway undertaking the income and expenditure upon and in connexion with omnibuses shall (so far as may be reasonably practicable) be distinguished from the income and expenditure upon or in connexion with the remainder of such undertaking.

Omnibuses
to form part
of tramway
undertaking.

21. The Corporation may provide cloak-rooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them in connexion with their tramway and omnibus undertakings and at any places on the routes of the Corporation tramways or any omnibus route and the Corporation may make charges for the use of such cloak-rooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein.

Cloak-
rooms &c.

22.--(1) Notwithstanding anything contained in any Act to the contrary the Corporation may on any special occasion run and reserve carriages on any of the Corporation tramways and omnibuses on any omnibus routes for any special purpose which the Corporation may consider necessary or desirable provided that during the running of such special carriages or omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of carriages or omnibuses as the case may be.

Power to
reserve cars
for special
purposes.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such carriages or omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this or any other Act of the Corporation as to rates or charges for passengers shall not extend to any special carriages run upon the Corporation tramways or omnibuses run upon the omnibus routes and in respect thereof the Corporation may demand and take such rates or charges as they shall think fit.

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(4) Section 13 (Restrictions not to apply to special carriages) of the Act of 1906 is hereby repealed.

Power to
require
intending
passengers
to wait in
lines or
queues.

23. For the better regulation of persons desiring to travel in the carriages on the Corporation tramways and the omnibuses of the Corporation the Corporation may erect and maintain barriers and posts at any stopping-place or terminus and for that purpose may use part of the highway and the Corporation may make byelaws requiring persons waiting to enter carriages or omnibuses at any stopping-place or terminus upon any of their tramways or omnibus routes to wait in lines or queues and to enter such carriages or omnibuses in the order in which they stood in such line or queue.

Stopping
and starting-
places.

24. The Corporation may appoint the stations and places from which the carriages on the Corporation tramways and the omnibuses of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers and may make regulations for fixing the time during which such carriages and omnibuses shall be allowed to remain at any such place.

Through
cars and
omnibuses.

25. The Corporation may run through cars along any of the routes of the Corporation tramways or any specified portion thereof and through omnibuses along any route and such cars and omnibuses shall be distinguished from other cars and omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by such cars and omnibuses a fare or charge not exceeding the maximum fare authorised for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car or omnibus. Provided that the running of such through cars shall in no way curtail the ordinary service.

Attachment
of signs
indicating
stopping-
places to
lamp-posts
&c.

26.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of their tramways or omnibuses signs or directions indicating the position of stopping-places for tramcars and omnibuses:

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the

owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment. A.D. 1920.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

27. Any property found in any tramcar or omnibus of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the tramway undertaking of the Corporation. Lost property.

28. The tolls fares rates and charges authorised by the Acts relating to the Corporation tramways and by this Act shall be paid to such persons and at such places upon or near to the Corporation tramways or the omnibuses as the case may be and in such manner and under such regulations as the Corporation may by notice to be annexed to the list of tolls fares rates and charges appoint. Payment of fares rates and charges.

29. Any byelaws made by the Corporation under the provisions contained in this Part of this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws. As to byelaws under this Part of this Act.

30.—(1) The Corporation may demand and take for every passenger travelling upon the tramways for the time being belonging to or worked by the Corporation or any part or parts thereof including every expense incidental to such conveyance any rates or charges not exceeding three halfpence per mile and in computing the said rates and charges a fraction of a mile shall be deemed a mile but in no case shall the Corporation be bound to charge a less sum than twopence. Increase of rates for passengers on tramways.

(2) Section 29 (Rates for passengers) of the Act of 1899 is hereby repealed.

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Periodical
revision of
travelling
rates and
charges.

31.—(1) If at any time after three years from the date of the passing of this Act or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Minister of Transport by twenty inhabitant ratepayers of the borough or by the Corporation that under the circumstances then existing all or any of the rates or other charges demanded and taken in respect of the traffic on the tramways or of any such portion should be revised the Minister of Transport may (if he thinks fit) direct an inquiry in accordance with the provisions of the Ministry of Transport Act 1919 and if after such inquiry it shall appear to the Minister of Transport that all or any of the rates or charges should be revised the Minister may by order in writing under the hand of an assistant secretary of the Ministry alter modify reduce or (subject to the maximum rates and charges authorised by this Act) increase all or any of the fares or charges to be taken in respect of the tramways or of any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Minister of Transport made in pursuance of this section.

(2) Section 35 (Periodical revision of rates and charges) of the Act of 1899 is hereby repealed.

Use of tram-
ways for
sanitary
purposes.

32.—(1) The Corporation may in such manner as they think fit use the Corporation tramways for sanitary purposes and for the conveyance of scavenging stuff night soil road and sewer material coal pipes and any other materials required for or arising at the works of the Corporation and may for such purposes with the consent of the Minister of Transport form connexions between any yards or works belonging to the Corporation and any of the Corporation tramways.

(2) Provided always that in the construction of such connexions as aforesaid no rail shall be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one-third of the owners or one-third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice of their intention express their objection thereto.

33.—(1) Where any tree which overhangs any highway along which the Corporation run omnibuses under the provisions of this Act may in any way interfere with the working or clear and safe passage of the omnibuses and the passengers thereon the Corporation may serve a notice on the owner of the tree or on the occupier of the premises on which such tree is growing requiring him to lop the tree within seven days so as to prevent such interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

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Trees over-
hanging
highways.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(3) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

34. The Corporation may for the purpose of regulating and facilitating the traffic on market or fair days or for the execution of any works by the Corporation or during the time of any public meeting procession or demonstration or for any other purpose which the Corporation having regard to the good government of the borough or the safety of the public may deem necessary order that the working of the Corporation tramways or any part thereof shall be stopped delayed or suspended but so that such stoppage delay or suspension shall continue only so long as may reasonably be necessary for the purposes aforesaid or any of them and the Corporation shall not be liable to pay compensation for damages in respect thereof.

Power for
Corporation
to suspend
traffic.

PART IV.

STREETS BUILDINGS SEWERS AND DRAINS.

35.—(1) When application shall be made to the Corporation to approve the laying out of a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) within the borough

Plans to be
submitted on
application
for approval
of new
street.

A.D. 1920. the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme for the development or laying out of such estate or lands.

(2) Every person who fails to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Adjustment
of boundaries
of lands on
approval of
new street.

36.—(1) It shall be lawful for the Corporation for the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which any application for the approval of the Corporation of the laying out of a new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) is made to require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land as may be necessary or convenient for such purposes and the provision to be so made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective owners of such estates or lands on the application of the Corporation or any such owner be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such owner or owners such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid. Provided that the payment of money by any such owner shall not be made a term of condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Corporation.

(3) Any lands or moneys received by any owner in or in respect of any adjustment or alteration of boundaries or exchange

of lands under the provisions of this section shall be held by such owners subject to the same trust (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) as the lands exchanged therefor. A.D. 1920.

37. The Corporation may agree with the owner of any land in any street to give up land for the purpose of widening opening enlarging or otherwise improving such street in exchange for any part of such street which shall front other land belonging to such owner and shall be behind the general line of such street and which shall in the opinion of the Corporation be no longer required for public use or for approach to any property adjoining the same and for such other consideration (if any) as may be agreed and all public rights of way over any portion of any street so exchanged shall be extinguished. Exchange of parts of streets disused.

38.—(1) Before any name is given to any street notice of the intended name shall be given to the Corporation and the Corporation may by notice in writing given to the person by whom notice of such intended name has been given to them at any time within one month after receipt of such notice object to such intended name and it shall not be lawful to set up any name to any street until the expiration of one month after notice thereof has been given as aforesaid to the Corporation or to set up any name objected to as aforesaid Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. Naming of streets.

(2) Any person deeming himself aggrieved by any such objection of the Corporation may appeal to a court of summary jurisdiction within seven days of the receipt by him of the objection provided he gives twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

39. The Corporation may cause such part of any street repairable by the inhabitants at large to be laid out for a carriageway and footway respectively as they think proper and may from time to time alter and rearrange the parts so laid out respectively. Power to set out carriage-way and foot-way.

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As to
cleansing of
gullies in
private
streets.

40.—(1) The Corporation may by notice in writing require the owner of any street in the borough which is a highway not repairable by the inhabitants at large or the owners of the premises abutting upon such street to cleanse the gullies in such street within such reasonable time as may be specified in the notice.

(2) In the event of such owner neglecting or refusing to comply with any requirement of the Corporation under this section the Corporation may themselves cleanse the gullies in such street and may recover the expense incurred by them in so doing from such owner.

Fencing
vacant lands
adjoining
streets.

41. Where on the grounds of public health or the general amenities of the neighbourhood it is desirable that any vacant land adjoining any street should be fenced off from such street the Corporation may require the owner of such vacant land to fence off the same from such street in such manner as may be reasonably necessary.

Power to
require repair
or taking
down of
dilapidated
buildings.

42.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may make an order upon the owner thereof requiring him within a reasonable time to be prescribed by the order either to put such building (in this section referred to as a "neglected structure") into a state of repair and good condition to the satisfaction of the Corporation or to take down the same and in addition to or in substitution for the above-mentioned order they may make an order upon such owner requiring him to fence the ground upon which the neglected structure is or was standing or any part thereof and in either case they may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after expiration of such time may enter upon the neglected structure or such ground as aforesaid and execute the order.

(3) Where the order provides for the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient

place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit. A.D. 1920.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessée or other person liable to the expenses of repairs.

43.—(1) In any case where a building shall have been reported to the Corporation as dangerous to the inmates thereof or persons working therein or in the case of any building which may appear to the Corporation on the report of the surveyor or any duly qualified officer to be dangerous to the inmates or persons working therein the Corporation may order a complete external and internal inspection and examination of any such buildings to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk enter at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary upon such building and examine and inspect the same. As to dangerous buildings.

(2) If upon such examination and inspection it shall appear necessary that any works shall be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures in the borough.

44.—(1) The Corporation may prohibit the construction in or in connexion with any dwelling-house of any cellar or room the floor level of which shall be lower than the highest known Cellars not to be constructed

A.D. 1920.

below sub-
soil water
level.

level of the subsoil water on under or adjacent to the land on which such dwelling-house shall be erected.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Food stor-
age accom-
modation to
be provided
in new
houses.

45.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2)—(a) Every dwelling-house erected before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give forty-eight hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

Prohibition
of entry of
petrol into
sewers.

46. Every person who wilfully or negligently turns or permits to enter into any sewer of the Corporation or any drain communicating therewith any petrol oil carbide of calcium or other like explosive or deleterious substance from any workshop motor garage motor house or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

Apportion-
ment of
expenses of
works

47.—(1) Where under the provisions of any Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under the said Act are recoverable by the

Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. A.D. 1920.
between
different
owners.

(2) Section 135 (Apportionment of expenses in case of joint owners) of the Act of 1906 is hereby repealed.

48. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. Penalty on
occupier
refusing
execution
of Act.

49. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply for the purposes of this Part of this Act as if those purposes had been mentioned in the said section 102. Power of
entry.

50. Nothing contained in this Part of this Act or in any byelaws made thereunder shall be deemed to extend or apply to any part of the estate for the time being of the Mersey Docks and Harbour Board within the borough or to any works or buildings (except dwelling houses) now or hereafter to be executed constructed or carried out on the said estate and used or intended to be used for or in connexion with the business or purposes of the said board under any power vested in them or prejudice or affect any of the rights powers or privileges of the said board. Saving for
Mersey
Docks and
Harbour
Board.

PART V.

INFECTIOUS DISEASE AND OTHER SANITARY PROVISIONS.

51.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the borough require Power to
close Sunday
schools to

A.D. 1920. the closing of any Sunday school or any department thereof or
 prevent spread of disease &c. the exclusion of certain children therefrom for a specified time
 or the exclusion of children from places of public entertainment
 or assembly for a specified time such requirement shall be at
 once complied with.

(2) Any person responsible for the conduct or management of any school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

(3) Section 28 (Closing of Sunday school for preventing spread of disease) of the Act of 1901 is hereby repealed.

Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails.

52.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the Education Committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Special provisions to prevent spread of infectious disease.

53. Any parent or guardian having personal charge of a child in attendance at a school who is aware of or has reason to suspect the occurrence of any infectious disease in any member of the family and who fails forthwith to notify such occurrence to the head teacher of the school shall be liable to a penalty not exceeding twenty shillings.

Extended meaning of "infectious disease" for certain purposes.

54. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes measles German measles whooping-cough chicken-pox and influenza.

55.—(1) Any premises within the borough ordinarily used for the preparation or manufacture of potted or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Corporation from time to time in such manner as they may direct and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid and the Corporation shall have power to refuse registration of any premises where the conditions are unsuitable.

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—
Registration
of premises
used for pre-
paration of
potted or
preserved
foods.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

56.—(1) If the medical officer or the inspector of nuisances has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

Houses
infested with
vermin to be
cleansed.

(2) Where on the certificate of the medical officer or inspector of nuisances it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in

A.D. 1920. the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(5) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given or any work done by the Corporation was reasonable and whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

(6) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation within the borough or any boat lying in any river dock canal or other water within the borough and used for the like purpose.

Cleansing of
verminous
persons.

57.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who or (where the person is a child) whose parent or guardian does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where two justices on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the

removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the conditions of any order satisfied without charge to the person removed or to the parent or guardian of that person. A.D. 1920.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such justices shall cease his employment in order to comply with such order the Corporation may and in case of an order of the justices shall make compensation to him for any loss he may suffer thereby.

(4) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river dock canal or other water within the borough and used for the like purpose.

58.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in a highly-infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken and that serious risk of infection is thereby caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a medical man to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such persons therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

Removal of
person suffer-
ing from
pulmonary
tuberculosis.

(2) The medical officer shall give to the person so suffering or some person being in charge of the person so suffering three

A.D. 1920. clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion during the period of detention make payments for or towards the effective support and maintenance of the relatives of or those actually dependent upon any person so suffering and removed to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the amount necessary for such effective support and maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependents.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and the court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order of the Minister of Health which order the Minister of Health is hereby empowered to make.

Sanitary
regulations
for premises
used for sale
&c. of food

59.—(1) From and after the passing of this Act the following provisions shall apply to any room shop or other part of a building within the borough in which any article whether solid or liquid intended or adapted for the food of man is sold

or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale:—

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for human
consumption.

(a) No urinal watercloset earthcloset privy ashpit or other like sanitary convenience shall be within such room shop or other part of a building or shall communicate therewith except through the open air or through an intervening ventilated space:

(b) No drain or pipe for carrying off faecal or sewage matter shall have any inlet or opening within such room shop or other part of a building:

(c) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in any such room shop or other part of a building except so far as may be reasonably necessary for the proper carrying on of trade or business:

(d) Due cleanliness shall be observed in regard to such room shop or other part of a building and all articles apparatus and utensils therein and shall be observed by persons engaged in such room shop or other part of a building.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building wherein any of the conditions prohibited by this section exist or does or knowingly permits any act or thing therein in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not apply to any factory within the meaning of the Factory and Workshop Act 1901.

60. The Corporation shall be entitled to refuse registration of any person in respect of premises for the sale of milk where the conditions are unsuitable and in the case of any premises already registered shall have the power to cancel registration where the conditions become unsuitable.

Power to
refuse regis-
tration of
premises for
sale of milk.

61.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the

Public notice
to be given of
provisions of
this Part of
Act.

A.D. 1920. municipal offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

FORESHORE.

Power to
manage fore-
shore.

62.—(1) The Corporation may establish and maintain upon foreshore or lands adjacent thereto acquired or to be acquired by them or upon such part thereof as may be set apart for the purpose pleasure grounds and pleasure fairs and in connexion therewith may erect and maintain all necessary pavilions booths and stalls and take rents or charges for the use thereof or admission thereto and may prescribe what portions of such foreshore and lands acquired or to be acquired by them shall or may be used for such purposes or any of them.

(2) Provided that no works or other buildings shall be erected or maintained on the foreshore without the consent of the Ministry of Transport to be signified in writing by the Acting Conservator of the River Mersey.

Provision
and use of
seats and
chairs on
seashore and
elsewhere.

63. The Corporation may place or authorise any person or persons to place seats or chairs on the foreshore and lands adjacent thereto now or hereafter belonging to or leased to them (so far as the terms of the lease will allow) for the use of the public and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the seats and chairs and may make byelaws for regulating the use of the seats and chairs and for preventing injury or damage thereto.

Byelaws as
to foreshore.

64. The powers conferred upon the Corporation by section 7 (Board may make byelaws as to user of foreshore) of the Wallasey Local Board Act 1890 shall be extended so as to enable the Corporation to make byelaws for the following purposes (that is to say):—

(a) For preventing persons from inciting dogs to bark on the foreshore:

- (b) For prohibiting the exhibition of advertisements on the foreshore: A.D. 1920.
- (c) For prohibiting the sale of articles on the foreshore:
- (d) For prohibiting the delivery of speeches lectures and sermons on any part of the foreshore not set apart for the purpose:
- (e) For prohibiting the distribution of hand-bills and placards on the foreshore:
- (f) For preventing the soliciting of alms or the collection of subscriptions on the foreshore:
- (g) For the preservation of order and good conduct among persons using the foreshore:
- (h) For generally regulating user of the foreshore for such purposes as shall be prescribed by such byelaws.

PART VII.

RATING.

65. This Part of this Act shall come into operation as from the thirty-first day of March nineteen hundred and twenty-one. Commence-
ment of Part
VII. of Act.

66.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate. All expenses
of Corpora-
tion to be
paid out of
borough rate.

(2) The district fund of the borough shall be closed and any balance which on the date upon which this Part of this Act comes into operation is standing to the credit or to the debit of such district fund or the general district rate of the borough respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund

A.D. 1920. and any moneys owing to the Corporation in respect of or in connexion with the said district fund or of the said general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

Contribution
to borough
rate to be
paid out of
poor rate.

67. The contribution of the parish to the borough rate shall be paid by the overseers out of the poor rate to be made for the parish and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall apply to such contribution.

Differential
poor rate in
certain cases.

68. The provisions contained in this section shall have effect with respect to the poor rates (including therein the borough rates) to be hereafter made and levied by the overseers (that is to say):—

- (1) The owner of any tithes or any tithe commutation rent-charge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the poor rates in respect of such hereditaments on the full rateable thereof but shall be liable to pay in each year only two-thirds of the rate in the pound payable in respect of hereditaments not within the provisions of this section:

Provided that during the continuance of the Agricultural Rates Act 1896 the occupier of any agricultural land as defined in that Act shall be liable to pay in each year two-fifths only of the rate in the pound payable in respect of hereditaments not within the provisions of this section.

- (2) Nothing in this section shall in any way affect—

- (a) The operation of the Agricultural Rates Act 1896 save as in this section is expressly provided or the payment of the sum certified by the Ministry of Health as the amount of the share of the annual grant payable under that Act out of the local taxation account to the spending authority; or

(b) The amount of the contribution for any purposes to be made by the parish out of the poor rate; or

(c) The calculation of the amount in the pound of the part of the poor rate levied for the purposes of the relief of the poor and other expenses of the guardians county contributions and expenses of the overseers respectively which is required to be stated in the demand note for the poor rate.

69. No warrant of commitment in respect of non-payment of the poor rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate. As to recovery of poor rate.

70. For the purposes of section 133 of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be two-thirds of the amount in the pound of the poor rate. As to section 133 of Lands Clauses Consolidation Act 1845.

PART VIII.

FINANCE.

71.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connexion with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenue fund and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods mentioned in the fourth column thereof (namely):—

1.	2.	3.	4.
Purpose.	Amount.	Charge.	Period for Repayment.
(a) For the provision and equipment of omnibuses.	£40,000	The revenue of the tramway undertaking and the borough fund and borough rate.	Eight years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Act as herein-after provided.	The sum requisite.	The borough fund and borough rate.	Five years from the passing of this Act.

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(2)—(a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of Part III. (Omnibuses and Tramways) of this Act and may with the consent of the Minister of Health borrow such further money as may be necessary for any of the other purposes of this Act.

(b) In order to secure the repayment of money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister with whose consent it is borrowed.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent it is borrowed.

(3) The provisions of this section prescribing the revenue fund or rate which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by section 63 (Power to use one form of mortgage for all purposes) of the Act of 1901.

Application
of financial
provisions of
Act of 1896.

72. The following provisions of the Act of 1896 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Section 24 (Mode of raising money);

Section 25 (Certain regulations of Public Health Act not to apply);

Section 26 (Application of provisions of Public Health Act as to mortgages);

Section 28 (Mode of repayment of money borrowed on mortgage);

Section 29 (Regulations as to sinking fund);

Section 31 (Council not to regard trusts);

Section 32 (Appointment of receiver);

Section 34 (Annual return to Local Government Board);

Section 36 (Application of money borrowed);

Section 37 (Protection of lender from inquiry);

Section 38 (Inquiries by Local Government Board);

Section 39 (Expenses of execution of Act);

Section 40 (Audit of accounts):

Provided that the provisions contained in section 29 (Regulations as to sinking fund) of the Act of 1896 shall apply to the formation of sinking funds for the repayment of money borrowed under the Local Loans Act 1875 instead of section 15 (Discharge of loan by sinking fund) of the last-mentioned Act.

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73. Notwithstanding anything contained in the Acts or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund which has been formed by the Corporation for any purpose shall be three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve.

Rate of accumulation of annual payments to sinking fund for repayment of loans.

74.—(1) The Corporation shall have power—

Power to re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

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(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 21 (Power to re-borrow) of the Act of 1909 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Appoint-
ment of
professional
auditors.

75. The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in addition to the auditors appointed under the Municipal Corporations Acts.

PART IX.

MISCELLANEOUS.

Power to
convert
destructor
refuse into
slabs and
other mate-
rials and to
use and sell
such mate-
rials.

76. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connexion with their refuse destructor or destructors into slabs of artificial stone bricks concrete mortar material for filtration or percolation purposes at sewage disposal works and other materials and may construct such buildings and works and may in connexion therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for making and repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from any sales thereof to the credit of the destructor account in the district fund.

Power to
Corporation
to subscribe
to hospitals
&c.

77. Section 123 (Power to council to subscribe to hospitals &c.) of the Act of 1906 shall be amended so as to enable the Corporation to subscribe to any hospital infirmary nursing institution or other institutions of similar character up to an amount not exceeding in the whole one thousand pounds per annum.

Power to
advertise
borough.

78.—(1) The Corporation may advertise the amenities of the borough or any part thereof as a health resort or watering place by handbooks or leaflets or by the insertion of advertisements in newspapers not published within the borough.

(2) In lieu of carrying to the credit of the district fund the profits if any received by the Corporation for the year ending thirty-first March nineteen hundred and twenty or any subsequent year in respect of the Victoria Gardens or Marine Park or foreshore or in respect of the use of any buildings or enclosures in any of their parks recreation grounds promenades or lands or from the establishment of pleasure grounds and pleasure fairs upon the foreshore or lands adjacent thereto or the letting of seats and chairs in pursuance of the powers of this Act the Corporation may apply such profits for the purpose of defraying the expenses incurred by them under this section and the Corporation shall not be entitled to apply any other moneys for such purpose and the sums so expended shall not in any one financial year exceed the amount that could be raised by a rate of one penny in the pound on the rateable value of the borough.

A.D. 1920.

79. The Corporation may make such reasonable charges as they may think fit for admission to and for the use of any public buildings belonging to them or for the use of any buildings or enclosures in any of their parks recreation grounds promenades or lands used for the purposes mentioned in this Part of this Act and they may also make such charge for the use of chairs and for admission to the public halls concert halls pavilions conservatories winter gardens assembly rooms reading-rooms and conveniences in connexion therewith as they may deem fit.

Power to
charge for
use of build-
ings &c.

80.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the borough to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

Inspection
and certifica-
tion of taxi-
meters.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

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(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

Motor hack-
ney carriages
to be fitted
with ap-
proved taxi-
meter.

81.—(1) The Corporation may require any motor hackney carriage plying for hire in any street or public place or at any railway station within the borough to be fitted with a taximeter or similar apparatus for registering fares to be approved by them and to be placed in a position and to be lighted after dark in a manner to be approved by them.

(2) Any owner who shall allow a motor hackney carriage to ply for hire within the borough which is not so fitted shall be liable upon conviction to a penalty not exceeding forty shillings.

(3) Any driver of a motor hackney carriage who shall ply for hire within the borough with a motor hackney carriage which was so fitted when delivered to him by the owner after the apparatus shall have ceased to be effective whilst under his charge or which is not lighted after dark as required by the provisions of this section shall be liable upon conviction to a penalty not exceeding forty shillings.

Byelaws as
to hackney
carriages.

82. The Corporation may in addition to the powers contained in section 68 of the Town Police Clauses Act 1847 from time to time make byelaws in relation to hackney carriages licensed by them for all or any of the following purposes that ~~is to say~~ (namely):—

- (a) For the examination and inspection of hackney carriages at such time and place as the Corporation may appoint within one month before the annual licensing day:
- (b) For the inspection of every hackney carriage at all reasonable times when required by the inspector of hackney carriages appointed by the Corporation:
- (c) For the cessation of user of a hackney carriage which at any time fails in any way to comply with the conditions under which it was licensed:
- (d) For the fixing of fares to be charged for the use of any motor hackney carriage by time and distance combined:

- (e) For the provision of a deposit of a reasonable sum by the owner of every motor hackney carriage applying for a licence for such carriage as a security for the number plate fare plate and inside number plate and for the deposit by the driver of every motor hackney carriage of a reasonable sum as security for his badge: A.D. 1920.
- (f) For the furnishing by the owner of every hackney carriage to the inspector of hackney carriages or any constable of the borough on request being made by him of the name and place of abode of any person who was authorised to drive such carriage at any specified time within seven days previous to such request being made:
- (g) Prohibiting any person riding on the front or driving box or upon any part of the outside of any motor hackney carriage:
- (h) For the notification in writing to the town clerk by the driver of any hackney carriage of any change in his place of abode.

83. Any person brought before a court of summary jurisdiction charged with having in his possession custody or control in any premises or otherwise any money or thing which there is reasonable ground to believe has been stolen or unlawfully acquired or detained and who does not account to the satisfaction of the court for his possession custody or control of the same shall for every such offence be deemed guilty of misdemeanour and either forfeit not exceeding five pounds or in the discretion of the court be imprisoned with or without hard labour for not exceeding two months.

Penalty on persons having property suspected to have been stolen.

84. The following sections of the Act of 1899 and the Act of 1906 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were enacted in this Act:—

Application of general provisions of Acts of 1899 and 1906.

The Act of 1899—

Section 13 (Power to retain sell &c. lands);

Section 14 (Proceeds of sale of surplus lands):

The Act of 1906—

Section 134 (As to appeal);

Section 136 (Compensation &c. how to be determined);

Section 137 (Recovery of penalties);

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- Section 138 (Informations by whom to be laid);
 Section 139 (Penalties to be paid over to treasurer);
 Section 140 (Recovery of demands);
 Section 141 (Application of section 265 of Public Health Act 1875);
 Section 142 (Saving for indictment &c.);
 Section 143 (Judges not disqualified);
 Section 144 (Powers of Act cumulative); and
 Section 145 (Crown rights).

Provisions as
to byelaws.

85.—(1) The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act other than Part III. thereof.

(2) Provided that as regards byelaws to be made under the provisions of Part VI. (Foreshore) of this Act the Secretary of State shall be substituted for the Minister of Health.

Inquiries by
Minister of
Health.

86.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and his inspectors shall for the purposes of any such inquiries have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by him in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding three guineas a day for the services of such inspector.

Costs of Act.

87. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys to be borrowed under the powers of this Act for that purpose.

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